

FACTFINDING REPORT

**STATE OF OHIO
STATE EMPLOYMENT RELATIONS BOARD
March 18, 2025**

In the Matter of:

Fraternal Order of Police,
Ohio Labor Council, Inc.

v.

Scioto County Sheriff

} Case No: MED-11-1342 (Sergeant and above)
} Case No. MED-11-1343 (FT Dispatchers)
} Case No. MED-11-1344 (FT C.O.Sgt./Lts)
} Case No. MED-11-1345 (Deputy Sheriffs)
} Case No. MED-11-1346 (Cooks, Clerks, Secs.)
}
} Carol J. Bader, Esq.
} Factfinder

APPEARANCES:

For the Employer:

**Mr. Benjamin Albrecht
Fishel, Downey, Albrecht & Riepenhoff, LLC
7775 Walton Parkway
New Albany, Ohio 43054**

For the FOP:

**Mr. Mark Scranton
222 East Town Street
Columbus, Ohio 43215**

Team Members:

David Thoroughman, Sheriff
Blaine Duduit, Chief Deputy
Scottie Powell, Commissioner

Team Members:

Lucas Hansen, FOP-OLCI
David Bennett, C.O./Rep
Jodie Conkel, Sgt. Det./Rep
Kevin Lewis, Deputy for Nile Township
Bradley Grooms, C.O. Lieutenant

The undersigned was duly appointed by SERB letter dated February 24, 2025 to serve as Factfinder in the matter between Fraternal Order of Police, (hereinafter Labor Council or FOP) and the Scioto County Sheriff's office. (hereinafter Sheriff or Employer).

The hearing was held at Scioto County Sheriff's office on March 5, 2025. The Union was represented by Mr. Mark Scranton, FOP. The Employer was represented by Mr. Ben Albrecht, attorney. The Factfinder was notified prior to the hearing that the parties had agreed to an extension of the SERB timelines for hearing; and the parties requested that the report be issued on March 18. The Factfinder appreciates the hard work necessary for a well-organized and thorough presentation.

There are no tentative agreements because the issue is simply a 2025 wage reopener. Per the union's position statement, the parties did not meet personally, as offers and counter offers were exchanged by email.

The Factfinder made her recommendations applying the following standards as required by the State Employee Relations Board :

"The Factfinder in making recommendations, shall take into consideration the following factors pursuant to division (C)(4)(e) of section 4117.14 of the Revised Code:

- Past collective bargaining agreements, if any, between the parties.
- Comparison of the unresolved issues relative to the employees in the bargaining unit with those issues related to other public and private employees doing comparable work, giving consideration to factors peculiar to the area and classification involved
- The interests and welfare of the public, the ability of public employer to finance and administer the issues proposed, and the effect of adjustments on normal standard of public service.
- The lawful authority of the public employer
- Any stipulations of the parties Such other factors, not confined to those listed above, which are normally or traditionally taken into consideration in the determination of the issues submitted to mutually agreed upon dispute settlement procedures in the public service or in private employment

FACTUAL BACKGROUND:

Overview

Scioto County is located in south central Ohio, with Portsmouth as its County seat. Population is seventy- seven thousand but per the employer it is declining over time. (Employer #6/) According to the Employer median income is around \$46,000. Portsmouth is situated on the Ohio and Scioto rivers with little manufacturing, as main employer is " Big Sandy Stores"

The five bargaining units, (A,B,C,D and corrections officers) are represented by the Labor Council as a group, each has its own labor agreement. The bargaining units represent 93 mostly public safety positions: corrections officers, correction command, sheriff's road patrol deputies, sheriff deputy command, dispatch, cooks, secretaries and clerks. Scioto County Sheriff operates a jail, and is responsible for law enforcement / road patrol for Scioto County outside the City of Portsmouth, which has its own police force.

Bargaining History:

The parties negotiated the referenced contract in 2024. According to the County Position Statement, the parties did not meet personally over the wage reopener. They simply exchanged emails to determine the position of the parties on the issues, moving on to factfinding when they could not reach agreement.

UNRESOLVED ISSUE:

In 2024, the County provided a 10% wage increase to all FOP units and wage reopeners for 2025 and 2026. Other wage increases were also negotiated, for example, a \$2.00 an hour increase for the dispatchers. While most of Ohio's public bargaining units spread increases over a three-year contract, the County gave the 10% increase up front. The Sheriff stated that this was done to stay competitive and retain good people. As for 2025, the Sheriff now proposes a "me too" agreement which would allow the bargaining units a raise if one is negotiated with other General Fund employees.

The Labor Council requested the wage reopener discussions, asking for a 3% increase. The Union stated that their proposal would cost the County \$136,000 to implement in 2025. Further, they noted that the County had overages in their budget and could afford to provide the raise.

Union Proposal:

ARTICLE 27:

"Effective January 1, 2024 the parties agree to a 10% across the board wage increase for all steps in Bargaining Units A and B. A \$1.25 across the board wage increase for all steps in Bargaining Unit C. In Bargaining Unit D, the parties agree to a 3% across the board wage increase for all steps each year of the contract period. Effective January 1, 2025, the parties agree to a wage reopener for all steps in Bargaining Units A, B, C, and D shall increase 3% across the board increase for all steps. Effective January 1, 2026 to a wage reopener for all steps in Bargaining Units A, B, C, D. The increased hourly rates are listed in the schedule below: See Appendix A."

Employer Proposal :

2025: Bargaining Unit employees shall receive same percentage wage increase as provided other non-bargaining, General Fund employees by official action of the Board of County Commissioners.

Analysis:

The Factfinder reviewed the two proposals using the standards required by SERB. She notes that the comparables most useful are those in the SERB published "Wage Report for 2024", the Portsmouth City law enforcement and several counties including Ross and Lawrence. (due to close proximity and population). Public entities have been bargaining 3% to 4% annually for most law enforcement for the most recent contract years. Furthermore, the trend continues for average negotiated wages over the next three years.

Taking into consideration the comparables and the large initial raise, the Factfinder recommends that the parties end the cycle. In exchange for removing the 2026 wage reopener,

the County should provide a 2% raise for 2025. Looking at law enforcement negotiated raises on p. 2 of the 2024 *Wage Reopener* for Police (4.35%, 3.55 and 3.45), 12% over the course of three years is not outrageous. This solution would keep the County in a good position for the next two years of wages, reduce the time spent by the County/Union on negotiations, and eliminate any further arguments over “me too” agreements. There would be no expectation of an increase until the expiration of the contract. In addition, it makes negotiations with the general fund employees easier as there are no “me too” agreements to consider.

Recommendations:

- 2025 2% across the board wage increase for all bargaining units
- removal of wage reopener for 2026
- no “me too” agreement

Factfinder Recommended Language:

ARTICLE 27:

“Effective January 1, 2024 the parties agree to a 10% across the board wage increase for all steps in Bargaining Units A and B. A \$1.25 across the board wage increase for all steps in Bargaining Unit C. In Bargaining Unit D, the parties agree to a 3% across the board wage increase for all steps each year of the contract period. Effective January 1, 2025, the parties agree to an increase 2% across the board for all steps.”

The increased hourly rates are listed in the schedule below: See Appendix A.”

Respectfully submitted,



Carol J. Bader

Factfinder

I hereby certify that the above report was provided to Benjamin Albrecht, Scioto County representative and Mark Scranton FOP representative via email on this 18th day of March, 2025.

